

24STCV19785 24STCV19785

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-08-06

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C734%2C08%2F06%2F2026

Source SHA-256: 31e1f9d9a02d19e7bb68472af578842b49fc3e4a8cf768f56e9eb11c143d04b2

Case Number: 24STCV19785 Hearing Date: August 6, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 12:50 PM on August 5, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on August 5, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff

purchased the subject property and filed an unlawful detainer action, after which Defendants executed a purported conveyance of title to the subject property. Plaintiff seeks to quiet title along with related causes of action.

The

Court bifurcated the case and held a bench trial as to Phase I, after which it issued a Statement of Decision finding in favor of Plaintiff.

Plaintiff Matthew Behdjou moves for judgment on the pleadings.

TENTATIVE RULING

Plaintiff Matthew Behdjou's motion for judgment on the pleadings is GRANTED as to the first, second and third causes of action in the Cross-Complaint. This disposes of the entire case. Plaintiff is to submit a proposed judgment.

ANALYSIS

Motion For Judgment On The Pleadings

Request

For Judicial Notice

Plaintiff's request that the Court take judicial notice of the March 6, 2026, Statement of Decision filed by the Court after the Phase I trial in this case is GRANTED per Evid. Code § 452(d)(court records).

Defendants'

Evidentiary Objections

Request For Judicial Notice

No. 1:

OVERRULED. The Statement of Decision is a court record of which the Court may properly take judicial notice pursuant to Evid. Code § 452(d). Moreover, a motion for judgment on the pleadings may be based upon "any matter of which the court is required to take judicial notice." (Code Civ. Proc. § 438(d).)

Declaration of Jacob H. Zadeh

No. 2: OVERRULED.

The Court's rulings as set forth in the minutes are matters which may be considered by the Court.

No. 3:

OVERRULED. Counsel is permitted to cite to the Statement of Decision.

No. 4:

OVERRULED. This is part of the meet and confer effort.

(Code Civ.

Proc., § 438, subd. (c)(3)(B)(ii).)

Meet

and Confer

The Declaration of Jacob H. Zadeh

appears to satisfy the meet and confer requirement set forth in Code Civ. Proc. § 439.

Discussion

The Court has reviewed the moving papers, the opposition and the reply. The Court will only address the matters which it deems pertinent to the disposition of this motion.

A motion for judgment on the pleadings may be granted in favor of a defendant if "[t]he complaint does not state facts sufficient to constitute a cause of action against that defendant." (Code Civ. Proc., § 438, subd. (c)(3)(B)(ii).) This ground "shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Id., subd.

(d).) The statute explicitly authorizes California trial courts to bring their own motions for judgment on the pleadings and to grant such motions. (Id., subd. (b)(2).)

(Foster v. Sexton (2021) 61 Cal.App.5th 998, 1019.)

The Court

bifurcated the case and held a bench trial as to Phase I, after which it issued a Statement of Decision finding in favor of Plaintiff. Plaintiff Matthew Behdjou moves for judgment on the pleadings granting dismissal of the Cross-Complaint filed by Defendants Maria Beronica Lopez and

Joel Lopez Mercado.

The motion is based on the following grounds:

- (1) That the Court has already ruled for Plaintiff in its March 6, 2026, Statement of Decision on the Phase I bench trial, awarding Plaintiff quiet title to the real property located at 2829 S. Rimpau Blvd., Los Angeles, CA ("Subject Property") pursuant to Plaintiff's Second Cause of Action, and cancellation of a July 23, 2024, Quitclaim Deed ("July Quitclaim Deed") by which Defendants fraudulently clouded Plaintiff's title to the Subject Property pursuant to the Sixth Cause of Action;
- (2) That Plaintiff has since dismissed the remaining causes of action of his Complaint and/or the Court dismissed them as a result of Defendants' Demurrer; and
- (3) That as a necessary part of the Statement of Decision, the Court also ruled on the legal and factual foundation of the First, Second and Third Causes of Action of Defendants' Cross-Complaint – the only causes of action remaining in the Cross Complaint – issuing findings going to the heart of the three causes of action and thereby barring Defendants from relitigating those rulings by the doctrine of collateral estoppel/issue preclusion, leaving nothing else to be decided with regard to the Cross-Complaint.
- (4) Further, as a necessary part of the Phase I Statement of Decision, the Court also issued detailed findings rejecting all of Defendants' proffered affirmative defenses and the legal and factual foundation they are based on, and issuing findings that go to the heart of the First, Second and Third Causes of Action of Defendants' Cross-Complaint – the only remaining claims.

Collateral estoppel does not apply to the same lawsuit. (All Bay Mill & Lumber Co. v. Sur. Co. (1989) 208 Cal.App.3d 11, 18 n.3 [bold emphasis added].) However, issues adjudicated in an earlier phase of a bifurcated trial are binding on later phases and need not be relitigated:

"All of the trial court's equitable findings were binding on the [plaintiff's] legal claims,

regardless of whether they were necessary for the judgment. ‘ Issues adjudicated in earlier phases of a bifurcated trial are binding in later phases of that trial and need not be [*32] relitigated. [Citations.] No other rule is possible, or bifurcation of trial issues would create duplication, thus subverting the procedure's goal of efficiency. [Citation.] “[D]uplication of effort is the very opposite of the purpose of bifurcated trials.”” (Citation omitted.)

(Reliant Life Shares, LLC v. Cooper (2023) 90 Cal.App.5th 14, 31-32.)

The remaining causes of action in the Cross-Complaint are as follows:

1. First Cause of Action (Fraudulent Concealment).

The Cross-Complaint alleges at ¶¶ 7, 20 – 22:

7. The house was worth about 1,050,000 in December 2023. They convinced Joel to list the house and contract to sell it at about \$950,000. In about March of 2025, Joel balked at the selling price and cancelled. Samuel and Matthew continued to text and call him, trying to convince him to sell to them. As the foreclosure sale date approached, they eventually got a sale contract and deed for the low price of \$700,000. The sales contract was not compliant with Civ 2945.2 or 2945.3. There was no notice of right to cancel or method to cancel included.

. . .

20. Cross defendants concealed the right to cancel from Cross Complainants. This is something a licensed agent and a sophisticated investor should be aware of, and is statutory – required to be in bold letters on the contract. However, instead of using the required form of contract, Cross defendants created their own abbreviated contract which omitted and concealed a number of required disclosures, rights of seller, right to cancel, etc.

21. The concealment was of information the cross complainants would have wanted to know, that would have materially helped them had they known, and

allows them to cancel the bargain sale of their property to keep or negotiate a fair sales price.

22. Cross defendants allege that the act of Cross Defendants in pushing them near the foreclosure date and then pressuring them to sell the house at a steep discount is oppressive and fraudulent, as well as concealing the right to cancel.

(Cross-Complaint, ¶¶ 7, 20 – 22 [bold emphasis added].)

However, Civil Code § 2945.2 and 2945.3—which form the basis for the cross-claim for fraudulent concealment (Cross-Complaint ¶ 7) is part of the Mortgage Foreclosure Consultants regulation, codified at Civil Code § 2945 et seq. See Civil Code § 2945(c):

(c) The intent and purposes of this article are the following:

(1) To require that foreclosure consultant service agreements be expressed in writing; to safeguard the public against deceit and financial hardship; to permit rescission of foreclosure consultation contracts; to prohibit representations that tend to mislead; and to encourage fair dealing in the rendition of foreclosure services.

(2) The provisions of this article shall be liberally construed to effectuate this intent and to achieve these purposes.

(Civ. Code § 2945(c).)

However, in the Statement of Decision, the Court found that “the Foreclosure Consultant Act does not apply to Plaintiff.” (Statement of Decision, Page 11.) As such, the sales contract need not have been compliant with Civil Code 2945.2 or 2945.3, including giving notice of right to cancel or method to cancel. This issue cannot be re-litigated.

As

such, the motion for judgment on the pleadings is GRANTED as to the first cause of action.

2. Second Cause of Action (Rescission).

The Cross-Complaint alleges at ¶¶ 24

– 26:

24. Sales made in violation of the foreclosure consultant regulations are voidable, and those made with no notice of right to cancel and cancellable until 5 days after a right to cancel has been delivered. This cross complaint constitutes a demand to cancel.

25. CC 1695.5 states “(d) Until the equity purchaser has complied with this section, the equity seller may cancel the contract.”. CC 2945 et seq states that contract in violation of the act are voidable.

26. Thus, Cross defendants demand that the contract be voided, the transaction rescinded, and the grant deed cancelled.

In the Statement of Decision, the Court found that that Defendant Lopez’s primary residence was 645 N. Manhattan Place, not the Subject Property, and therefore HESCA (Civil Code § 1696 et seq.) does not apply to the purchase transaction. (Statement of Decision, Pages 9 – 10.)

The Court also found that the Foreclosure Consultant Act (Civil Code § 2945 et seq.) does not apply to Plaintiff because Plaintiff neither sought nor received compensation for any tasks performed incident to the sale of the Subject Property. (Statement of Decision, Pages 10 – 11.)

As such, the Court has already decided against the cross-claim that the sale violated foreclosure consultant regulations so as to be cancellable. This issue cannot be re-litigated.

As

such, the motion for judgment on the pleadings is GRANTED as to the second

cause of action.

3. Third Cause of Action (Cancellation of Instrument).

¶ 28 of the Cross-Complaint alleges:

28. The grant deed to Matthew Behdjou from Maria Lopez must be cancelled, as the fruit of a void and cancellable transaction.

However, the Court has already decided in the Statement of Decision that:

[T]he May Deed (Exhibit 7) conveying title from Maria Lopez to Matthew Behdjou, establishes a valid claim to legal title for the Subject Property as of the date of its recordation.

(Statement of Decision, Page 12.)

As such, the Court has already decided against the cross-claim that this grant deed is void and cancellable. This issue cannot be re-litigated.

As such, the motion for judgment on the pleadings is GRANTED as to the third cause of action.